



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 28 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11420

EXPIRATION DATE: March 15, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Jones Chemicals, Incorporated
LeRoy, NY
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of a DOT Specification MC-331 cargo tank, containing Chlorine, Division 2.3, with a defective vapor valve, which has been equipped with an emergency "C" Kit to prevent further leakage. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 173.24(b)(1), 173.24(f), 173.315(o)(1) and (2) and 177.840(f).
5. BASIS: This emergency exemption is based on Jones Chemicals Incorporated's application dated February 22, 1995, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary for the protection of life.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	ID Number	Hazard Zone
Chlorine	2.3	UN1017	Hazard Zone B

7. PACKAGING AND SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification MC-331 cargo Tank (Vehicle Number 5132) which has a defective vapor valve that is equipped with an emergency "C Kit" to prevent leakage.
 - b. MARKING - The cargo tank must be marked "DOT-E 11420" in four inch letters and numerals on a contrasting background above the DOT specification number.

8. SPECIAL PROVISIONS:

- a. The DOT Specification 312 cargo tank will be transported by Montgomery Tank Lines from Boundbrook NJ to Warwick, NY, a distance of approximately 77 miles.
- b. Two emergency response team members will accompany the shipment equipped with emergency equipment. Transportation must follow a planned route that avoids populated areas.
- c. The cargo tank must not be placed back into service prior to repair of the defective valve.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

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Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo
reproductions and legible reductions of this exemption are permitted.
Any alteration of this exemption is prohibited.

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